Mississippi Black Codes

Mississippi Legislature · November 1865

Source: Mississippi State Archives; reprinted in Documenting the American South, docsouth.unc.edu.

In late 1865, southern legislatures — operating under Andrew Johnson's lenient Reconstruction plan — passed 'Black Codes' that aimed to re-impose a system of unfree Black labor in the aftermath of emancipation. Mississippi's were among the harshest. They criminalized unemployment ('vagrancy'), restricted Black property rights, and apprenticed Black children to former enslavers. Northern outrage over the Black Codes helped fuel the shift to Radical Reconstruction in 1866–67.

Connect: Mississippi's 1865 Black Codes are the reason the 14th Amendment (Class 26) needed to be written. Point to ONE specific Black Code provision that the 14th Amendment invalidated.

Key Passages

Vagrancy Law (sample)

> All freedmen, free negroes and mulattoes in this State, over the age of eighteen years, found on the second Monday in January, 1866, or thereafter, with no lawful employment or business … shall be deemed vagrants, and on conviction thereof shall be fined in a sum not exceeding … fifty dollars … and imprisoned, at the discretion of the court, not exceeding ten days.

Apprentice Law

> It shall be the duty of all sheriffs … to report … all freedmen, free negroes and mulattoes, under the age of eighteen … who are orphans, or whose parent or parents have not the means or who refuse to provide for and support said minors; and thereupon it shall be the duty of said probate court to … apprentice said minors … the former owner of said minors shall have the preference.

Civil Rights Law

> Freedmen, free negroes, and mulattoes are not allowed to keep or carry fire-arms of any kind, or any ammunition, dirk, or bowie-knife.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Immediately after the Civil War (1865), with the 13th Amendment ending slavery and Southern governments operating under Johnson's lenient plan.
Intended Audience *Who was the source written for?*	White Mississippians, especially planters, law officers, and courts, along with freedpeople who would be bound by the laws.
Point of View *Whose perspective? Whose is missing?*	The all-white Mississippi legislature, made up of former Confederates and planters who wanted to restore control over Black labor; freedpeople had no say.

HIPP Element	Your Analysis
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. LEQ Historical Reasoning — CCOT (1 pt): Write a thesis on what changed and what stayed the same in Southern labor relations between 1860 and 1866.

2. Identify TWO specific provisions of these codes that recreated features of slavery.

3. Why did the Black Codes radicalize Northern Republicans in 1866?